LAST WILL AND TESTAMENT

of ARTHUR PENDELTON

I, ARTHUR PENDELTON, a resident of Austin, Travis County, State of Texas, being of sound mind and disposing memory, and not acting under duress, menace, fraud, or undue influence of any person whomsoever, do hereby make, publish, and declare this instrument to be my Last Will and Testament, hereby revoking all prior wills and codicils heretofore made by me.

Article I: IDENTIFICATION OF FAMILY

Section 1.01 Marital Status. I am married to Eleanor Vance Pendelton, and all references in this Will to "my spouse" are to said person.

Section 1.02 Children. I have two (2) living children, namely:
• Chloe Pendelton, born April 10, 2008
• Liam Pendelton, born November 15, 2011
All references in this Will to "my children" include the above-named children and any child hereafter born to or legally adopted by me.

Article II: PAYMENT OF DEBTS, EXPENSES, AND TAXES

Section 2.01 Debts and Expenses. I direct my Executor to pay out of my residuary estate all of my legally enforceable unsecured debts, funeral expenses, expenses of my last illness, and the expenses of administering my estate as soon after my demise as is practicable. Secured debts encumbering specific property (such as a residential mortgage or automobile loan) shall pass with the respective property unless otherwise specified herein.

Section 2.02 Estate and Inheritance Taxes. All federal, state, and local estate, inheritance, or succession taxes (including any interest and penalties thereon) payable by reason of my death with respect to property passing under this Will shall be paid out of my residuary estate without apportionment among the recipients thereof.

Article III: DISPOSITION OF TANGIBLE PERSONAL PROPERTY & SPECIFIC BEQUESTS

Section 3.01 Tangible Personal Property. I give and bequeath all of my clothing, jewelry, household furniture and furnishings, personal automobiles, personal effects, and other tangible personal property not otherwise specifically disposed of herein to my spouse, Eleanor Vance Pendelton, if she survives me by thirty (30) days; otherwise to my children who survive me by thirty (30) days, in shares of substantially equal value as they shall agree.

Section 3.02 Specific Bequests. I make the following specific gifts of cash or personal property:
(a) I give Ten Thousand Dollars ($10,000) to the Austin Public Library Foundation, Austin, TX, if it is in existence at my death; if not, this gift shall lapse and become part of my residuary estate.

Section 3.03 Written Memorandum. I may leave a separate written statement or list disposing of certain items of my tangible personal property. Any such list in existence at the time of my death, signed and dated by me, shall be determinative with respect to the items devised therein.

Article IV: DISPOSITION OF RESIDUARY ESTATE

Section 4.01 Primary Residuary Beneficiary. I give, devise, and bequeath all the rest, residue, and remainder of my estate, of every kind and character and wheresoever situated, including any lapsed or failed devises (my "Residuary Estate"), to my spouse, Eleanor Vance Pendelton, provided she survives me by thirty (30) days.

Section 4.02 Contingent Residuary Beneficiaries. If Eleanor Vance Pendelton does not survive me by thirty (30) days, I give, devise, and bequeath my Residuary Estate to my descendants who survive me, per stirpes. If neither my primary beneficiary nor any of my descendants survive me, I give my Residuary Estate to my brother, Graham M. Pendelton.

Article V: APPOINTMENT OF EXECUTOR (PERSONAL REPRESENTATIVE)

Section 5.01 Nomination of Executor. I nominate and appoint Eleanor Vance Pendelton, of Austin, Texas, as Independent Executor of this my Last Will and Testament. If Eleanor Vance Pendelton is unable or unwilling to serve, I nominate and appoint Graham M. Pendelton, of Atlanta, Georgia, as Alternate Independent Executor.

Section 5.02 Bond and Independent Administration. No bond or other security shall be required of any Executor named herein in any jurisdiction. To the fullest extent permitted by the laws of the State of Texas, I direct that no action shall be had in any court in the administration of my estate other than the probating and recording of this Will and the return of an inventory, appraisement, and list of claims of my estate (or an affidavit in lieu thereof).

Section 5.03 Executor Powers. My Executor shall have all powers conferred upon fiduciaries by state law, including the power to sell, lease, mortgage, or liquidate any real or personal property of my estate at public or private sale, with or without notice, distribute assets in cash or in kind, settle claims, and employ legal, accounting, or investment professionals.

Article VI: CUSTODIAL PROVISIONS FOR MINOR OR YOUNG BENEFICIARIES

Section 6.01 Uniform Transfers to Minors Act (UTMA). If any beneficiary entitled to receive a distribution under this Will is under the age of twenty-one (21) years at the time of distribution, my Executor may distribute such share to a custodian selected by my Executor for such beneficiary under the Texas Uniform Transfers to Minors Act.

Article VII: GENERAL & MISCELLANEOUS PROVISIONS

Section 7.01 Survivorship Requirement. For all purposes of this Will, no person shall be deemed to have survived me unless such person is living on the thirtieth (30th) day following the date of my death.

Section 7.02 Severability. If any provision of this Will is held invalid, unenforceable, or void, the remaining provisions shall nevertheless continue in full force and effect.

IN WITNESS WHEREOF, I, ARTHUR PENDELTON, have hereunto subscribed my name to this Last Will and Testament, consisting of this and the preceding pages, on this _____ day of _____, 20____, at Austin, Texas.

_____

ARTHUR PENDELTON, Testator

ATTESTATION CLAUSE: DECLARATION OF WITNESSES

On the date written above, ARTHUR PENDELTON declared to us, the undersigned, that the foregoing instrument was his Last Will and Testament, and requested us to act as witnesses to the same. The Testator thereupon signed this Will in our presence, all of us being present at the same time. We now, at the Testator's request, in the Testator's presence, and in the presence of each other, subscribe our names as witnesses, believing the Testator to be of sound mind and over the age of eighteen (18) years, and acting voluntarily without duress or undue influence.

Witness 1 Signature: _____ Date: _____
Name: Marcus Vance
Address: 1204 Congress Ave, Austin, TX 78701

Witness 2 Signature: _____ Date: _____
Name: Sarah Jenkins
Address: 4501 Guadalupe St, Austin, TX 78751

SELF-PROVING AFFIDAVIT

STATE OF TEXAS
COUNTY OF TRAVIS

Before me, the undersigned authority, on this day personally appeared ARTHUR PENDELTON, Marcus Vance, and Sarah Jenkins, known to me to be the Testator and the witnesses, respectively, whose names are subscribed to the annexed or foregoing instrument in their respective capacities, and, all of said persons being by me duly sworn, the said Testator declared to me and to the said witnesses in my presence that said instrument is his Last Will and Testament, and that he had willingly made and executed it as his free act and deed; and the said witnesses, each on their oath stated to me, in the presence and hearing of the said Testator, that the said Testator had declared to them that said instrument is his Last Will and Testament, and that he executed same as such and wanted each of them to sign it as a witness; and upon their oaths each witness stated further that they did sign the same as witness in the presence of the said Testator and at his request; that the Testator was at that time eighteen years of age or over and was of sound mind; and that each of said witnesses was then at least fourteen years of age.

_____
ARTHUR PENDELTON, Testator

_____
Marcus Vance, Witness

_____
Sarah Jenkins, Witness

Subscribed and sworn to before me by the said Testator and the said witnesses, this _____ day of _____, 20____.

_____
Notary Public, State of Texas
My Commission Expires: _____